

STATE OF NEW YORK

349--A

Cal. No. 11

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. BARRETT, CONRAD, STERN, CUNNINGHAM, SEAWRIGHT, COLTON, ROSENTHAL, SCHIAVONI, LEVENBERG, LASHER, OTIS -- Multi-Sponsored by -- M. of A. SIMON -- read once and referred to the Committee on Energy -- ordered to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the public authorities law, in relation to establishing the zero-emission vehicles rebate program; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The public authorities law is amended by adding a new section 1887 to read as follows:

§ 1887. Previously owned zero-emission vehicles rebate program. 1. There is hereby created within the authority a zero-emission vehicles rebate program. The purpose of the program is to reduce greenhouse gas emissions, improve air quality, and reduce noise pollution by promoting the adoption of quieter, zero-emission vehicles.

2. As used in this section:

(a) "Institutional or commercial applicant" shall mean a commercial business, or a state agency, state authority, local authority, town, county, village, school district, private school, university, not-for-profit corporation, or other nonprofit organization.

(b) "Individual applicant" shall mean a person, who is not an institutional or commercial applicant, and who intends to use an eligible zero-emission vehicle for private home use and not for any commercial purposes.

(c) "Zero-emission vehicle" shall have the same meaning as under part two hundred eighteen of title six of the New York codes, rules and regulations.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 (d) "Eligible zero-emission vehicle" shall mean a zero-emission vehi-
2 cle that has been used or previously owned, and is purchased or leased
3 from a storefront or online retailer.

4 (e) "Local authority" shall have the same meaning as in subdivision
5 two of section two of this chapter.

6 (f) "State agency" shall mean all state departments, boards, commis-
7 sions, offices or institutions.

8 (g) "State authority" shall have the same meaning as in subdivision
9 one of section two of this chapter.

10 3. The authority shall award rebates to institutional or commercial
11 applicants and individual applicants at the point of sale for eligible
12 zero-emission vehicles in amounts up to two thousand dollars, as deter-
13 mined by the authority.

14 4. The authority shall determine the rebate eligibility of each appli-
15 cant in accordance with the requirements of this section and rules
16 promulgated by the authority. The total amount of rebates allocated to
17 certified applicants in each fiscal year shall not exceed the amount of
18 funds available for the program in such fiscal year. Rebates shall be
19 allocated to applicants on a first-come, first-served basis, determined
20 by the date the application is received, until all appropriated funds
21 for the fiscal year are expended or the program ends, whichever comes
22 first.

23 5. The authority shall promulgate rules and regulations to implement
24 and administer the provisions of this section no later than one year
25 after the effective date of this section, including rules and regu-
26 lations relating to the forms required to claim a rebate under this
27 section, the required documentation and basis for establishing eligibil-
28 ity for a rebate, procedures and guidelines for claiming a rebate, the
29 collection of economic impact data from applicants, and any other
30 requirements the authority deems necessary. The authority shall conduct
31 education and outreach, with informational materials made available in
32 at least English and the three most common non-English languages spoken
33 by individuals with limited-English proficiency in the state of New
34 York, based on United States census data, as necessary to inform poten-
35 tial applicants and manufacturers and retailers of eligible zero-emis-
36 sion vehicles about the zero-emission vehicles rebate program.

37 6. The authority shall determine and publish on its website on an
38 ongoing basis the amount of available funding for rebates remaining in
39 each fiscal year.

40 7. No later than two years after the effective date of this section,
41 and annually thereafter on the first of January, the authority shall
42 issue a report to the temporary president of the senate, the speaker of
43 the assembly, the chair of the senate committee on energy and telecommu-
44 nications and the chair of the assembly committee on energy detailing
45 the status of the zero-emission vehicles rebate program. Such report
46 shall include:

47 (a) the amount of funding dedicated by the authority for the program
48 in the preceding year;

49 (b) the amount of eligible purchases for which a rebate was awarded;

50 (c) the amount and geographic distribution of rebates; and

51 (d) any other information the authority deems necessary.

52 § 2. This act shall take effect immediately and shall expire and be
53 deemed repealed January 1, 2031.